

LENIORS v. PACIFIC GAS & ELECTRIC Co.

22CV46442

PLAINTIFFS' MOTION FOR RECONSIDERATION OF ORDER SUSTAINING DEMURRER WITHOUT LEAVE TO AMEND

This matter was first filed on November 23, 2022, as a Verified Complaint and Ex Parte Application for Temporary Restraining Order (TRO). Plaintiffs sought to enjoin defendant from terminating their electric service. The TRO was granted. Defendant filed its first Demurrer on June 20, 2023. This case involves a dispute between utility customers and the utility company concerning an unpaid bill of \$126,691.66.

In a detailed six-page ruling, the Court sustained the demurrer and identified the aspects it believed were outside the California Public Utility Commission's (CPUC) exclusive jurisdiction, namely slander, intentional infliction of emotional distress, and spoliation. The Court provided details on the elements of these causes of action and the necessary averments for them to proceed. It granted thirty (30) days leave to amend.

On September 1, 2023, the First Amended Complaint was filed. Defendant demurred. The Court focused on the slander, intentional infliction of emotional distress, and spoliation causes of action, noting that the plaintiffs had chosen not to provide the necessary additional factual details on the identified causes of action. The Court sustained the demurrer, granting another 30 days leave to amend.

On January 8, 2024, a Second Amended Complaint ("SAC") was filed. Defendant again demurred. When ruling on this Demurrer the Court stated:

"[T]he court guided plaintiffs regarding the requirements for stating a cause of action that would remove the complaint from the California Public Utilities Commission (CPUC) exclusive authority for adjudication of customer disputes. Plaintiffs contend the causes of action for slander and intentional infliction of emotional distress achieve this goal.

Upon reviewing the SAC, plaintiffs introduced only two arguably substantive additions when compared to the earlier pleadings. In a three-paragraph amendment labeled "JURISDICTION" (set forth as section/paragraph 17) plaintiffs argue that their claims do not contravene "the commission." The additional language concludes "the civil court has jurisdiction." (SAC ¶17, pg. 8.) This is argument, not facts. Further, at ¶21 the amended language adds a damage element assertion - one plaintiff's facial nerve virus flared and was attributed to the stress of the billing dispute.

Plaintiffs' Request for Judicial Notice is GRANTED.

The court addressed the matter of CPUC jurisdiction over customer billing disputes at length in its rulings for three demurrer hearings, outlining the necessary facts to challenge the exclusive jurisdiction established by California Public Utility Code (PUC) §1759(a), to bring the matter within the purview of PUC §2106, and what is necessary to proceed in this civil action for slander and intentional infliction of emotional distress causes of action.

Under Code of Civil Procedure (CCP) § 1008, when a party brings a Motion for Reconsideration this requires new law, facts, or circumstances. A new law or different fact must be one that was not available to the party when the underlying motion was presented to the Court (*New York Times v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213; see e.g., *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.)

In ruling on the demurrer to the second amended complaint, the Court took into account the argument put forth by the plaintiffs and gave them a chance to present causes of action for slander and intentional infliction of emotional distress. This would enable the civil court proceedings to move forward. The permissibility of a civil court matter is no longer in question - it is confirmed. The current issue is whether the plaintiffs have stated a cause of action for slander or intentional infliction of emotional distress - they have not. The Motion for Reconsideration fails to assert any new facts and merely renews earlier legal arguments.

Plaintiffs' Motion for Reconsideration of Order Sustaining Demurrer Without Leave to Amend is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to CRC 3.1312 in conformity with this Ruling.